

Court No. - 2

Case :- WRIT - C No. - 46580 of 2009

Petitioner :- Vijay Kumar Sarin

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Manoj Kumar Singh

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Heard learned counsel for the petitioner and Shir Pankaj Kumar Shukla, learned counsel appearing for the respondents.

By means of this writ petition, the petitioner has prayed for mandamus directing he respondent no. 2 and 3 to restore the electricity supply by way of reconnection/new connection in the house no. A-295-A, Sector 19, Noida, Gautam Buddha Nagar as per the provisions of supply Code 2005 at the earliest possible time.

The petitioner's case in the writ petition is that he is a tenant of the premises which was also connected with the electricity but on 11.7.2009, the electricity has been disconnected. The petitioner's case is that he has applied for fresh connection on 20.7.2009 to the City Magistrate Gautam Budha Nagar.

In case the petitioner intends to take fresh connection he has to make application in accordance with the provisions of U.P. Electricity Supply Code 2005 after complying all the provisions and procedures contained therein. There is nothing on record that the petitioner has made appropriate application.

In view of the above, no good ground has been made to entertain this writ petition. However, we observe that in case the petitioner makes an application before the respondent no.3 in accordance with the provision and procedure of U.P. Electricity Supply Code 2005, the same may be considered expeditiously.

With the above observation, the writ petition is disposed of finally.

Order Date :- 4.9.2009

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Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Civil Misc. Correction Application No.246367 of 2009.

Heard learned counsel for the petitioner.

By this application, the petitioner has prayed for leave to correct the number of the house as C-295-A in place of A-295-A as mentioned in the prayer clause of the writ petition.

The prayer is allowed. The petitioner may correct the number of the house in the prayer clause of the writ petition during the course of the day. Consequently the order dated 4.9.2009 is corrected in following manner:-

In fourth line of second paragraph of the order dated 4.9.2009 in place of words "House No.A-295-A", the words "House No.C-295-A" be read.

The application is disposed of.

Order Date :- 16.9.2009

Rakesh